

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

AUBURA LIONEL TAYLOR,

Plaintiff,

- against -

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, and P.O. JOHN DOE
nos. 1-20,

Defendants.

Index No.:

Date Purchased:

SummonsPlaintiff designates Kings
County as place of trial.

The basis of venue is:

Plaintiff's residence and location
of incident.

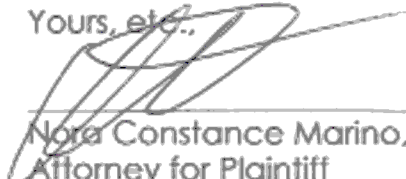
Plaintiff resides at:

23 Nostrand Avenue, Kings
County.**To the above named Defendant(s):**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Nassau County, New York
August 11, 2019

Yours, etc.,


Nora Constance Marino, Esq.
Attorney for Plaintiff
175 East Shore Road, Suite 230
Great Neck, New York 11023
516.829.8399
File No.: 1630Service to:
See next page:

CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
One Centre Street
Room 1200
New York, NY 10007-2341

CITY OF NEW YORK
LAW DEPARTMENT
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

P.O. JOHN DOE nos. 1-20
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

AUBURA LIONEL TAYLOR,

X

Index No.:

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, the NEW YORK CITY
POLICE DEPARTMENT, and P.O. JOHN DOE
nos. 1-20,

Defendants.

X

Plaintiff, by his attorney, NORA CONSTANCE MARINO, ESQ. complaining of
the Defendants herein, respectfully show this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff AUBURA LIONEL TAYLOR ("TAYLOR") was and still is a resident of the County of Kings, State of New York.
2. That at all times hereinafter mentioned, defendant CITY OF NEW YORK ("CITY") was and still is a municipal corporation, duly organized and existing under and by virtue of the law of the State of New York.
3. That at all times hereinafter mentioned, defendant NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and still is a municipal corporation and/or municipal police department, duly organized and existing under and by virtue of the law of the State of New York.

4. That at all times hereinafter mentioned, defendants P.O. JOHN DOES nos. 1-20, were agents, servants, and/or employees of defendants City and NYPD; were members of the NYPD; and were acting for, upon, and in course of and in furtherance of the business of their employers and within the scope of their employment for defendants City and NYPD.

5. That all times hereinafter mentioned defendants City and NYPD employed police officers and jailors and others hereafter mentioned in this complaint.

6. That at all times hereinafter mentioned, defendants City and NYPD owned, maintained, supervised, managed, operated, inspected and controlled the various jails, police, facilities, police stations, police precincts, police equipment, police vehicles, all hereinafter mentioned in the complaint.

7. That at all times hereinafter mentioned, all of the actions of the officers allege herein were done within the scope and course of their employment with defendants City and NYPD and under color of the state law.

8. That prior to the commencement of this action, and within ninety (90) days after the happening of the incident herein, plaintiff herein served a Notice of Claim in writing upon the defendants THE CITY OF NEW YORK.

9. That a 50-H hearing was held for the plaintiff.

10. That this action is commenced within one (1) year and ninety (90) days of the date when the incident occurred to the plaintiff.

FACTS

11. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

12. On January 1, 2019, at approximately between 3:00 a.m., plaintiff was peacefully attending a New Year's Eve Party located 959 St. Marks Avenue, Brooklyn. Plaintiff was lawfully outside of the premises when, for no reason, he was harassed and assaulted by defendants herein; Plaintiff was pushed to the ground and excessive force was used on him, causing the fracturing of one of his ribs. Plaintiff was handcuffed and arrested for no reason and without any probable cause or justification whatsoever. Plaintiff was taken to the 77th Precinct. He was then taken to Central Booking. On January 2, 2019 at approximately 10:00 a.m., plaintiff was taken to court and released. He was then taken to Brooklyn Hospital and diagnosed with a fractured rib.

13. Plaintiff was charged with disorderly conduct and obstruction of governmental authority. These charges were not warranted or justified, and were subsequently dismissed.

14. Plaintiff's First Amendment rights, due process rights, and other constitutional rights, were violated and not honored; plaintiff was wrongfully detained, arrested, frisked, searched, assaulted, touched, battered, and verbally abused without justification, authorization, provocation or probable cause by the defendants herein. Plaintiff was also caused to suffer serious personal injuries.

FIRST CAUSE OF ACTION
FALSE ARREST

15. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

16. Defendants used excessive force, assaulted, punched, kicked, handcuffed, threatened, and deprived plaintiff of his liberty, freedom, and constitutional rights, despite the fact that plaintiff had not committed a crime or violation.

17. That the defendant officers arrested plaintiff despite the fact that they knew that no crimes or violations were committed and that there was no probable cause or justification for such an arrest and/or detention and/or videotaping.

18. That at all times, the officers acted within the scope of their employment of defendants NYPD and under the authority of color of state law as police officers.

19. The aforescribed constitutional violations are all actionable under and pursuant to New York State Law, the New York State and Federal Constitution.

20. Although the defendants knew that detaining and arresting plaintiff when they had no right to do so, in violation of plaintiffs' constitutional rights, the defendants criminally processed the plaintiff, generating misleading and false accusatory instruments in order to lay charges against plaintiff, even though defendants knew or had reason to know that they were making an illegal arrest.

21. Defendants also illegally and unnecessarily detained the plaintiff without any justification to do so.

22. By virtue of the foregoing, plaintiff has been damaged in a sum exceeding the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND
RETENTION UNDER NEW YORK STATE LAW

23. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

24. Defendant NYPD negligently hired, trained, supervised, and retained the defendant officers; Defendant NYPD was careless and reckless in the hiring, training, supervision, overseeing, and retention of Defendant officers.

25. The individually named defendants and the John Does were acting in the scope of their employment when they failed to properly execute their duties, failed to protect the plaintiff.

26. The individually named defendants and the John Does were performing actions to further their employer's (the city defendants) interest, or to carry out duties incumbent upon the employ in furthering the employer's business.

27. That by reason of the foregoing, plaintiff requests an award of damages, which exceeds the jurisdictional limits of all lower, courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTIONMONELL CLAIM PURSUANT TO 42 U.S.C § 1981, 1983, 1985, 1986 (federal)
AND RESPONDEAT SUPERIOR (state)

28. Plaintiff repeats, reiterates and realleges each and every allegation contained herein as if fully set forth at length herein.

29. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the NYPD which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of defendant NYPD.

30. Defendant NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

31. Defendants detained, arrested, assaulted, battered, and victimized plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

32. Defendant NYPD has grossly failed to train and adequately supervise its police officers in the fundamental law of use of reasonable detention and/or arrest.

33. The direct and proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a physical and psychological

nature.

FOURTH CAUSE OF ACTION
MUNICIPAL AND/OR GOVERNMENTAL LIABILITY

34. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

35. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid detention, incarceration, violation of constitutional rights, and permanent psychological injuries to the plaintiffs; and were otherwise reckless, careless, and negligent.

36. That as a result of the above referenced negligence; Plaintiff was caused to sustain damages and his constitutional rights were violated.

FIFTH CAUSE OF ACTION
EXCESSIVE FORCE

37. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

38. Plaintiff did not resist the orders during the above described incident and did not take any actions necessitating the use of excessive physical force by defendants.

39. As a direct and proximate result of the unlawful excessive force used against plaintiff by defendants deprived plaintiff of his Constitutional rights in violation of the Fourth, Eighth and Fourteenth Amendments of the Constitution and are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

40. Defendant officers used excessive force against plaintiff with knowledge that plaintiff did not commit a crime and that the arrest and force used to effectuate the arrest was excessive, unnecessary and without cause or grounds therefore.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

41. Plaintiff repeats, reiterates and realleges all of the allegations set forth above.

42. That one of or more than one of the defendant officers prepared formal accusatory instruments, with the knowledge that no crime or violation had occurred.

43. That one of or more than one of the defendant officers prepared and filed charges against plaintiff with malice and the intent of depriving plaintiff of his liberty and right to not have their person seized knowing they had no cause or grounds to do so.

44. That one of or more than one of the Defendant officers prepared and filed these charges against Plaintiff with the intent to deprive Plaintiff of his

constitutional rights.

45. That defendant NYPD, its employees, agents and/or servants, failed to take any necessary steps to prevent this occurrence; failed to properly train its employees, agents and/or servants in arrest procedures; failed to control and supervise its employees, agents and/or servants; failed to prevent the aforesaid pain and suffering, defamation, incarceration and permanent psychological injuries to the plaintiff; and were otherwise reckless, careless and negligent.

SEVENTH CAUSE OF ACTION
ABUSE OF PROCESS

46. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

47. Without plaintiff's consent, one or more of the defendant officers harmfully and offensively touched Plaintiff by grabbing them, restraining them, handcuffing them, and unlawfully and unconstitutionally deprived the plaintiffs of their liberty and freedom.

48. That one or more of the defendant officers threatened plaintiff without justification, provocation or cause.

49. The defendants abused their authority and abused their position; Defendants abused and violated the public trust and in particular the trust of plaintiff. Defendants had no right under the laws of the land to detain, arrest, harass, incarcerate, or prosecute the plaintiff, yet they chose to regardless. The

defendant officers who did not detain, arrest, harass, incarcerate, or prosecute the Plaintiff, should there be any, are liable to plaintiff for their failure to protect and intervene, and a violation of their duty to intervene, safeguard, and protect the Plaintiff.

EIGHTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

50. Plaintiff repeats, reiterates, and realleges all of the allegations set forth above.

51. That each and all of the defendants herein had a duty of care to the plaintiff; that said duty was breached by the defendants; that said breach resulted directly in emotional harm.

52. That defendants, through extreme, outrageous, negligent and reckless behavior, caused severe emotional distress, mental trauma, and/or bodily harm to the plaintiff; that defendants engaged in extreme and outrageous conduct; negligently causing, or negligently disregarding a substantial probability of causing, severe emotional distress; and there lies a causal connection between the conduct and injury; and resulting severe emotional distress.

53. That defendants engaged in extreme and outrageous conduct against the plaintiff, negligently and/or recklessly disregarding the substantial probability of causing, severe emotional distress; there exists a direct causal connection with the conduct of the defendants and the injuries suffered by

plaintiff, including but not limited to plaintiff's severe emotional distress.

54. That defendants' actions goes beyond all possible bound of decency, and is regarded as atrocious and utterly intolerable in a civilized community.

55. That the acts of defendants described herein constitute a negligent infliction of emotional distress against the plaintiff, and the plaintiff has suffered damages pursuant thereto, and he will continue to suffer same in the future.

56. That by reason of the foregoing, plaintiff requests an award of damages which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION
INTENTIONAL INFLECTION OF EMOTIONAL DISTRESS

57. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

58. That the defendants engaged in extreme or outrageous conduct and intentionally caused severe emotional distress and bodily harm to the plaintiff.

59. That the acts of defendants described herein were an intentional infliction of emotional distress against the plaintiff, and the plaintiff has suffered damages pursuant thereto, and he will continue to suffer same in the future.

60. That defendants, through extreme, outrageous, negligent and

reckless behavior, caused severe emotional distress, mental trauma, and/or bodily harm to the plaintiff; that defendants engaged in extreme and outrageous conduct; with an intent to cause, or disregard of a substantial probability of causing, severe emotional distress; and there lies a causal connection between the conduct and injury; and resulting severe emotional distress.

61. That defendants engaged in extreme and outrageous conduct against the plaintiff, with an intent to cause, or a disregard of the substantial probability of causing, severe emotional distress; there is exists a direct causal connection with the conduct of the defendants and the injuries suffered by plaintiff, including but not limited to plaintiff's severe emotional distress.

62. That defendants' actions goes beyond all possible bound of decency, and is regarded as atrocious and utterly intolerable in a civilized community.

63. That by reason of the foregoing, plaintiff requests an award of punitive damages which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in all forms of damages for his pain and suffering, loss of enjoyment of life, economic loss, personal injuries, and other losses and damages, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff

further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, costs, and disbursements.

Dated: August 11, 2019
Nassau County, NY

Yours, etc.,
LAW OFFICES OF NORA CONSTANCE MARINO

BY: NORA CONSTANCE MARINO, ESQ.
Attorneys for Plaintiffs
175 East Shore Road, Suite 230
Great Neck, NY 11023
516-829-8399
nora@marinojustice.com
File No.: 1630

ATTORNEY VERIFICATION

STATE OF NEW YORK)

SS.:

COUNTY OF NASSAU)

NORA CONSTANCE MARINO, an attorney duly licensed to practice law, affirms under penalties of perjury, that I am the attorney of record for plaintiffs in the within action; that I have read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters, I believe it to be true. The reason this verification is made by me and not by plaintiffs named herein, is that the plaintiffs resides in a different county than that which your deponent maintains her office.

DATED: August 11, 2019
Nassau County, NY

AFFIRMED:

NORA CONSTANCE MARINO

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

AUBURA LIONEL TAYLOR,

*Plaintiff,,**- against -*THE CITY OF NEW YORKI, THE NEW YORK CITY
POLICE DEPARTMENT, AND P.O. JOHN DOE
Nos. 1-20,*Defendants.*

SUMMONS AND COMPLAINT

Law Offices Of
NORA CONSTANCE MARINO
Attorney for Plaintiff
Office and Post Office Address, Telephone
 175 East Shore Road
 Great Neck, New York 11023
PHONE: 516.829.8399
FAX: 516.829.4699

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____ 20__

Nora Constance Marino

To :

*Service of a copy of the within
 is hereby admitted.*

Dated: _____ 20__

Attorney(s) for:

PLEASE TAKE NOTICE :

☐ NOTICE that the within is a (certified) true copy of a

OF ENTRY: duly entered in _____ office of the clerk of the within named court _____ 20__

☐ NOTICE OF that an order of which the within is a true copy will be presented for settlement to the